

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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KASON FOUST,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER HUGO HUGASIAN, Tax No. 938681,
DETECTIVE PETER RUBIN, Tax No. 933299,
LIEUTENANT DAVID POGGIOLO, Tax No. 939236,
SERGEANT RAYNA MADHO, Tax No. 939829,
SERGEANT GREGORY KNAPP, Tax No. 936876, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 3, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER HUGO HUGASIAN, Tax No. 938681, 83th Precinct, 480 Knickerbocker Ave, Brooklyn, NY 11237
DETECTIVE PETER RUBIN, Tax No. 933299, 83th Precinct, 480 Knickerbocker Ave, Brooklyn, NY 11237
LIEUTENANT DAVID POGGIOLO, 83th Precinct, Tax No. 939236, 480 Knickerbocker Ave, Brooklyn, NY 11237
SERGEANT RAYNA MADHO, Tax No. 939829, Patrol Borough Brooklyn North, 179 Wilson Avenue, Brooklyn, NY 11237
SERGEANT GREGORY KNAPP, Tax No. 936876, 83th Precinct, 480 Knickerbocker Ave, Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KASON FOUST,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER HUGO HUGASIAN, Tax No. 938681,
DETECTIVE PETER RUBIN, Tax No. 933299,
LIEUTENANT DAVID POGGIOLO, Tax No. 939236,
SERGEANT RAYNA MADHO, Tax No. 939829,
SERGEANT GREGORY KNAPP, Tax No. 936876, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff KASON FOUST, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 5, 2016, at approximately 4:00 p.m., plaintiff Kason Foust, while lawfully present in the vicinity of Kings County Criminal Courthouse, located at 120 Schermerhorn Street, Brooklyn, New York, was subject to false arrest, and false imprisonment by the defendant New York City police officers. Defendants subjected plaintiff to malicious abuse of process, malicious prosecution and plaintiff was denied the right to due process and a fair trial. All criminal charges brought against plaintiff were dismissed and terminated in plaintiff's favor on or about February 24, 2017. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff KASON FOUST is a resident of the state of New York.

3. POLICE OFFICER HUGO HUGASIAN, Tax No. 938681, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER HUGO HUGASIAN, Tax No. 938681, is and was at all times relevant herein, assigned to the 83rd Precinct

5. POLICE OFFICER HUGO HUGASIAN, Tax No. 938681, is being sued in his individual and official capacity.

6. DETECTIVE PETER RUBIN, Tax No. 933299 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE PETER RUBIN, Tax No. 933299, is and was at all times relevant herein, assigned to the 83rd Precinct

8. DETECTIVE PETER RUBIN, Tax No. 933299, is being sued in his individual and official capacity.

9. LIEUTENANT DAVID POGGIOLO, Tax No. 939236, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. LIEUTENANT DAVID POGGIOLO, Tax No. 939236, is and was at all times relevant herein, assigned to the 83rd Precinct.

11. LIEUTENANT DAVID POGGIOLO, Tax No. 939236, is being sued in his individual and official capacity.

12. SERGEANT RAYNA MADHO, Tax No. 939829, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT RAYNA MADHO, Tax No. 939829, is and was at all times relevant herein, assigned to Patrol Borough Brooklyn North.

14. SERGEANT RAYNA MADHO, Tax No. 939829, is being sued in her individual and official capacity.

15. SERGEANT GREGORY KNAPP, Tax No. 936876, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. SERGEANT GREGORY KNAPP, Tax No. 936876, is and was at all times relevant herein, assigned to the 83rd Precinct.

17. SERGEANT GREGORY KNAPP, Tax No. 936876, is being sued in his individual and official capacity.

18. New York City Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On August 5, 2016, at approximately 4:00 p.m., plaintiff was lawfully present in the vicinity of the Kings County Criminal Courthouse, located at 120 Schermerhorn Street, Brooklyn, New York, when the defendant police officers unlawfully arrested and handcuffed plaintiff without reasonable suspicion, probable cause, or any legal justification.

25. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

26. By way of background, the defendant police officers fabricated allegations against plaintiff, falsely arrested plaintiff, and maliciously prosecuted plaintiff in retaliation against plaintiff for previously filing a complaint against the officers and a federal lawsuit against the defendants about another incident wherein defendants falsely arrested plaintiff, amongst other things. See Foust v. City of New York, 15 CV 1837 (WFK)(JO).

27. On August 5, 2016 at approximately 4:00 p.m., plaintiff was falsely arrested by defendants without probable cause or legal justification as plaintiff was leaving the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn, New York.

28. Plaintiff was transported by the defendant police officers to the 83rd Precinct against his will, where he was photographed, fingerprinted and then placed in a holding cell by the defendants.

29. At no time relevant herein did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

30. Defendants falsely accused plaintiff of selling a controlled substance to an individual 1 year and eight months earlier, on January 9, 2015 during a SNEU operation that defendants conducted.

31. The defendants falsely allege that they witnessed plaintiff sell a controlled substance to an individual named Charles Link.

32. Defendants possessed no physical or video evidence linking plaintiff to the sale of the controlled substance on said date.

33. Moreover, the arrest paperwork for Charles Link does not reference plaintiff whatsoever, nor does it reference an unapprehended individual that sold a controlled substance to Charles Link.

34. Charles Link's arrest report stated that the officers observed him "with a quantity of a controlled substance in public view during a SNEU operation" and makes no reference to Mr. Link purchasing crack from another individual, nor does it reference any other individuals who were allegedly with Charles Link.

35. At the time of Charles Link's arrest, the officers alleged that they recovered loose crack cocaine from him that was not contained in any sort of packaging.

36. It is unlikely that Charles Link purchased loose crack that was not contained in any sort of packaging or container immediately before he was arrested because crack is not generally sold unpackaged.

37. The officers' Misdemeanor Narcotics Fact Sheet filled out related to Charles Link's arrest explicitly states that Charles Link was not the buyer in an observed sale and the officers entered "not applicable" on the form where they were required to enter the name of the individual that sold the drugs to Charles Link.

38. Thus, it is clear from the police officers' own paperwork related to the arrest of Charles Link on January 9, 2015 that on the date of Charles Link's arrest the officers did not observe plaintiff sell crack to Charles Link, as was alleged by the officers on August 5, 2016.

39. After several hours in custody, plaintiff was transported from the 83rd Precinct to Kings County Central Booking and placed in a holding cell.

40. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff sold a controlled substance to an individual named Charles Link on January 9, 2015, which allegedly led them to believe that plaintiff committed a crime.

41. Additionally, defendant Police Officer Hugo Hugasian signed a criminal court complaint under penalty of perjury that contained false, misleading and incomplete allegations against plaintiff and that was used to initiate a criminal prosecution against plaintiff and charge him with crimes he did not commit.

42. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff, without probable cause.

43. On August 6, 2016 at approximately 12:00 p.m., after being unlawfully detained for approximately 20 hours, plaintiff was arraigned in Kings County Criminal Court, charged with crimes he did not commit, and released on his own recognizance.

44. The officers maliciously and unlawfully charged plaintiff with Criminal Possession of a Controlled Substance in the Third Degree, Criminal Sale of a Controlled Substance in the Third Degree, and Criminal Possession of a Controlled Substance in the Seventh Degree without probable cause or legal justification.

45. Thereafter, plaintiff appeared in Criminal Court on at least two additional occasions before all charges were terminated in plaintiff's favor, dismissed and sealed on February 24, 2017.

46. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, malicious prosecution, denial of due process and the right to a fair trial, and abuse of process against plaintiff.

47. The unlawful search, false arrest, and false imprisonment, denial of a right to fair trial, malicious prosecution, and abuse of process against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

48. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to malicious abuse of process, and maliciously prosecuted plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

51. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

56. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

58. Defendants lacked probable cause to search plaintiff.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

62. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

64. Defendants commenced and continued a criminal proceeding against plaintiff.

65. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

66. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

67. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Abuse of Process

70. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Defendants issued legal process to place plaintiff under arrest.

72. Defendants arrested plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

73. Defendants acted with intent to do harm to plaintiff, without excuse or justification.

74. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein

77. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

78. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

79. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

80. In withholding/creating false evidence against plaintiff Kason Foust, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

81. As a result of the foregoing, plaintiff Kason Foust, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

84. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

91. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Kason Foust demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 3, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 3, 2019

/s/
DAVIDF M. HAZAN